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LAW OF TURKMENISTAN

On state guarantees of the rights of the child

[766](#) // 12.05.2014 / [Legislation \(\rub=12\)](#)

This Law defines the legal, social, economic and organizational basis of state policy in the field of protection of the rights, freedoms and legitimate interests of the child, determines the legal status of the child as an independent entity and is aimed at ensuring its full development, the formation of high moral qualities, education in the spirit patriotism, citizenship based on historical and national traditions, universal spiritual, moral, cultural and social values and accepted in societies principles, rules and norms of morality, respect for public and state interests.

CHAPTER 1. GENERAL PROVISIONS

Article 1. Basic concepts used in this Law

The following basic concepts **are used in this Law** :

- 1) child - a person under the age of eighteen years (of majority);
- 2) childhood - the period of a child's life until he reaches adulthood;
- 3) protection of the rights of the child - a set of measures implemented by society and the state aimed at protecting the rights, freedoms and legitimate interests of the child, ensuring the upbringing and development of the child in accordance with his developing abilities;
- 4) an orphan - a child left without the care of both parents or a single parent in connection with their death or the court declaring them dead;
- 5) a child left without parental care or other legal representatives (hereinafter referred to as parents) - a child whose parents have died, are declared dead by the court, are deprived of parental rights, are restricted in parental rights, and due to health reasons they cannot personally raise and support a child, are recognized in accordance with the established procedure, missing, incompetent, and partially incapable, serving their sentences in institutions that carry out sentences of imprisonment, evade raising a child or defending his rights and the law's interests, and left without parental care for other legitimate reasons;
- 6) a child with a disability - a child with persistent physical, mental, intellectual or sensory impairments, which, when interacting with various barriers, may interfere with his full and effective participation in society on an equal basis with

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other children;

7) legal representatives of the child - persons (parents, adoptive parents, guardians, trustees, as well as representatives of institutions and organizations in whose care the child is), by virtue of the law, acting in all bodies and institutions, including judicial, in defense of personal non-property and property rights and legitimate interests of the child.

Article 2. Legislation of Turkmenistan on state guarantees of the rights of the child

1. The legislation of Turkmenistan on state guarantees of the rights of the child is based on the Constitution of Turkmenistan and consists of this Law and other regulatory legal acts of Turkmenistan.
2. If other rules are established by an international treaty of Turkmenistan than those contained in this Law, then the rules of the international treaty shall apply.

Article 3. Scope of this Law

1. The effect of this Law shall apply to relations arising in the protection of the rights, freedoms and legitimate interests of the child.
2. This Law also applies to a child of a foreign citizen, a stateless person, a refugee, a refugee child residing in the territory of Turkmenistan.

Article 4. Equality of the rights of the child

1. Turkmenistan guarantees the equality of rights and freedoms of each child living in the territory of Turkmenistan, regardless of nationality, race, gender, origin, social and property status, place of residence of himself and his parents, language, education, religion, circumstances of his birth health conditions or other circumstances.
2. Every child has the right to enjoy all the rights and freedoms granted to him. In the exercise of the rights, freedoms and legitimate interests of the child, the best interests of the child must be ensured.
3. The equal rights of the child are ensured by laws and other regulatory legal acts of Turkmenistan, generally recognized principles and norms of international law.
4. Violation of the equality of the child on the basis of sex, race, nationality, origin, social and property status, place of residence of himself and his parents, language, education, religion, circumstances of his birth, health status or other differences shall entail liability provided for legislation of Turkmenistan.

Article 5. Prohibition of restriction of the rights of the child

1. The rights of the child may not be restricted, with the exception of cases established by the legislation of Turkmenistan.
2. Any actions and (or) inaction restricting the rights and legitimate interests of the child are invalid.

Article 6. State policy in the interests of the child

1. The priority of state policy in the interests of the child is to ensure his best interests.
2. State policy in the interests of the child is aimed at:
 - 1) legislative support and protection of the rights, freedoms and legitimate interests of the child;

- 2) the protection of the life and health of the child, the protection of motherhood, fatherhood and childhood;
- 3) non-discrimination against the child, restoration of rights in case of violation;
- 4) the protection and development of the child's abilities, respect for his right to preserve his individuality;
- 5) protection of the honor and dignity of the child;
- 6) ensuring equal rights and opportunities for the child, his participation in the socio-political life of Turkmenistan;
- 7) improving the legal framework associated with state guarantees of the rights of the child;
- 8) ensuring compliance with the legislation of Turkmenistan on state guarantees of the rights of the child;
- 9) the formation and implementation of state targeted programs to ensure the rights, freedoms and legitimate interests of the child, support for motherhood, fatherhood and childhood;
- 10) promoting the physical, intellectual, spiritual and moral education and development of the child, the realization of the personality of the child in the interests of society and the state;
- 11) assisting the family in the harmonious development of the child, increasing its role in the upbringing and development of the child;
- 12) familiarizing the child with historical and national traditions, spiritual and moral values of the Turkmen people and the achievements of world culture;
- 13) support for children's initiatives;
- 14) assistance in the creation of children's, youth and youth public associations and organizations;
- 15) the formation of a child's high level of legal awareness and legal culture;
- 16) encouraging the family form of raising a child;
- 17) protection of the child's right to a favorable environment;
- 18) protection of the child from the consumption of food products containing narcotic drugs, psychotropic substances, precursors and their analogues, as well as genetically modified sources and other substances and compounds dangerous to the life and health of the child;
- 19) providing the child with environmentally friendly, high-quality and safe food products, encouraging the production of high-quality food products;
- 20) protection from advertising, print media, film, video and audio recordings harmful to the development of the child;
- 21) ensuring the transparency of the activities of state bodies and their officials in the protection of the rights, freedoms and legitimate interests of the child;
- 22) the establishment of state social standards of living standards for children;

23) promoting the social adaptation of the child, reducing the level of offenses among children;

24) assistance in the training, advanced training and retraining of personnel engaged in the protection of the rights, freedoms and legitimate interests of the child;

25) support for cooperation between state bodies and public associations and other organizations engaged in the protection of the rights, freedoms and legitimate interests of the child;

26) the fulfillment of Turkmenistan's international obligations in the field of protecting the rights, freedoms and legitimate interests of the child;

27) development of cooperation with international organizations engaged in the protection of the rights, freedoms and legitimate interests of the child.

3. When implementing measures to implement state policy in the interests of the child, a state order may be formed for the production of goods and the provision of services for children.

Article 7. Financial support of state policy in the field of protection of the rights, freedoms and legitimate interests of the child

Financial support of the state policy in the field of protecting the rights, freedoms and legitimate interests of the child, support for motherhood, fatherhood, childhood, and the family is carried out at the expense of the State budget of Turkmenistan, extrabudgetary sources attracted for these purposes in accordance with the legislation of Turkmenistan.

CHAPTER 2. RIGHTS, FREEDOMS AND OBLIGATIONS OF

THE CHILD Article 8. State guarantees of the rights of the child

1. Each child owns and is guaranteed by the state the rights and freedoms in accordance with the Constitution of Turkmenistan, this Law and other regulatory legal acts of Turkmenistan.

2. Children born in wedlock and (or) out of wedlock enjoy state support, they are provided with equal and comprehensive protection of their rights, freedoms and legitimate interests.

3. The state shall take the necessary measures to ensure the protection of the child from any form of discrimination.

Any discrimination based on disability or other circumstances is prohibited. The state guarantees children with disabilities equal with other children effective legal protection against discrimination on any grounds.

Article 9. The right of the child to life and development

1. Every child has the inalienable right to life from the moment he is determined to be live born and viable according to the criteria established by the health authorities, worthy conditions of physical, intellectual and spiritual development. No child can be deprived of the right to life.

2. The state and its relevant bodies shall take organizational, legal, socio-economic and other measures to ensure decent living and development conditions for the child, and a healthy and safe environment for his or her living.

3. The state creates conditions for ensuring the birth and development of a healthy child.

4. The right of every child to free life is protected by the state on the basis of law.

Article 10. The right of a child to a name and citizenship

1. Every child from the moment of birth has the right to a name and to acquire citizenship.
2. The fact and place of birth of the child are registered by state bodies of civil registration, as well as by bodies authorized to carry out state registration of acts of civil status in the manner established by the legislation of Turkmenistan.
3. The right of the child to acquire and change citizenship is regulated by the legislation of Turkmenistan on citizenship.

Article 11. The right of the child to preserve his individuality

1. Every child from the moment of birth has the right to preserve his individuality, including citizenship, nationality, first name, middle name, last name, as well as family and family ties.
2. If a child illegally loses part or all of the elements of his personality, the state shall provide him with the necessary assistance and protection for the speedy restoration of his personality.
3. Each child has the right to change the name, patronymic and last name in the manner prescribed by the legislation of Turkmenistan.

Article 12. The right of the child to the necessary standard of living

1. Each child has the right to the standard of living necessary for his physical, intellectual, moral, cultural, spiritual and social development.
2. The parents of the child, bodies of state power and administration, and local self-government are responsible for ensuring the living conditions necessary for the full development of the child, as provided for by the legislation of Turkmenistan.
3. No child may be left without a minimum means of subsistence, as well as guardianship (guardianship).

Article 13. The right of a child to live and be raised in a family

1. Every child has the right to live and be raised in a family, to know his parents, the right to care for them, to live together with them, if this does not contradict his best interests, to be raised by his parents, respect for his human dignity.
2. The family is the natural environment for the physical, intellectual, moral, cultural, spiritual and social development of the child, his material support and is responsible for creating the proper conditions for this.
3. A child may not be separated from his parents against his will and desire, with the exception of cases provided for by the legislation of Turkmenistan.
4. Parents have equal rights and obligations in relation to their child. The main concern and direct responsibility of parents is to ensure the best interests of their child.
5. Parents have the right and obligation to raise their child, take care of his health, harmonious development, education, preparation for socially useful work, instill in him respect for the laws, historical and national traditions of the Turkmen people.
6. A child who does not live together with his parents has the right to maintain personal relations with them (one of them),

to receive information about them, if this does not contradict his best interests, to maintain the secret of adoption.

7. The state and its relevant bodies facilitate family reunification.

8. In the event of the death of the parents, the deprivation of their parental rights, the illness of the parents, their prolonged absence, restrictions on parental rights or for other valid reasons, the child was left without parental care, the child's right to raise a family is ensured by the guardianship and trusteeship body in the manner established by law Turkmenistan.

Article 14. The right of the child to protect his honor and dignity

Every child has the right to protection of his honor and dignity.

Article 15. The right of the child to privacy

1. Every child has the right to privacy.

2. No child may be the object of arbitrary or unlawful interference with the exercise of his right to privacy, family life, the inviolability of his home, confidentiality of correspondence, telephone and other messages or unlawful encroachment on his honor, dignity, reputation, affection and good name.

3. There is no violation of the child's right to privacy.

Article 16. The right of the child to his own opinion, freedom of conscience and religion

1. Every child has the right to freedom of conscience, religion, free expression of his own opinion and views.

2. The views and wishes of the child in resolving any issues affecting his interests are taken into account taking into account his age and maturity.

Article 17. The right of the child to protection of health

1. Every child has the right to protection and promotion of health.

2. Each child has the right to use the modern services of the healthcare system of Turkmenistan, the means of treating diseases and restoring health. No child may be denied access to such services.

Article 18. The right of the child to education

1. Every child has the right to education, which is one of the basic and inalienable constitutional rights of citizens of Turkmenistan.

2. Every child has the right to receive general secondary education, which is compulsory, in state educational institutions for free.

3. The state encourages the development of talent and the education of the child.

Article 19. The right of the child to proper upbringing

1. Each child has the right to appropriate upbringing aimed at developing and improving the personality on the basis of historical and national traditions, universal spiritual, moral, cultural and social values, principles, rules and standards of behavior adopted in society.

2. Raising a child in the family is recognized as a priority form that ensures the rights and best interests of the child.

Article 20. The child's right to communicate with parents (one of them) and close relatives, including those living outside Turkmenistan, and to leave Turkmenistan

1. A child, including an adopted child, has the right to communicate with parents (one of them) and close relatives, including those living outside of Turkmenistan.

2. Divorce of parents, recognition of their invalidity or separation of parents do not affect the rights of the child provided for by this Law.

3. In the case of separate residence of parents, including those living in different states, the child has the right to communicate with each of them.

4. Parents living separately from the child are obliged to take part in his upbringing and have the right to communicate with him, except if such communication can have harmful consequences for his life, health, proper upbringing and full development.

5. The child has the right to receive information about absent parents, if this does not contradict his best interests.

6. A child, in order to communicate with parents (one of them) and close relatives living outside of Turkmenistan, is entitled to leave Turkmenistan to them in the manner established by the legislation of Turkmenistan.

7. A child in a difficult life situation (detention, arrest, detention, stay in a medical institution, etc.) has the right to communicate with his parents (one of them) and close relatives, and in their absence - with representatives of guardianship authorities in accordance with the legislation of Turkmenistan.

8. Disagreements regarding the child's communication with the parents (one of them) and close relatives, including those living outside Turkmenistan, as well as the child's departure from Turkmenistan for permanent residence in another state, are resolved in court.

9. A child has the right to leave Turkmenistan to participate in sporting events, cultural events, music and other events, as well as in cases of his illness and for other reasons, accompanied by the legal representative of the child or another person who has a notarized power of attorney from one of his legal representatives .

In the absence of a legal representative, the child may be allowed to leave by the guardianship authorities.

10. A refusal of permission to leave a child may be appealed in court.

Article 21. The right of the child to housing

1. Every child has the right to housing intended for his permanent residence.

2. No child may be left without a home. The home is untouchable.

3. A child who is a member of the family of the tenant of the dwelling has equal rights with other family members to live and use the dwelling, and a child who is a member of the family of the owner of the dwelling has the right to live in, use it, and also to inherit it.

4. A child who is a member of the family of the owner of the privatized residential premises has the right to common joint

or common shared property in such residential premises in accordance with the legislation of Turkmenistan.

5. In the event of the death of the parents or in other circumstances, the home is assigned to the child in the manner prescribed by the legislation of Turkmenistan.

6. An orphan has the right to priority provision of housing from the state housing stock.

7. A child who has returned from an orphanage, from relatives, guardians (trustees), and if by law he has retained the right of ownership to the former premises, but moving to it is not legally possible, has the right to extraordinary provision of premises of the state housing fund .

The same right has a child with a disability staying in a stationary institution, being an orphan or left without parental care, upon reaching the age of majority, if, in accordance with an individual rehabilitation program, he can carry out self-care and lead an independent lifestyle.

Article 22. The right of the child to rest, leisure and recreation

1. Each child has the right to rest, leisure and recreation, the right to participate in sports games and cultural and recreational activities appropriate to his age and state of health.

2. Bodies of state power and administration, local self-government, within their competence, take measures to ensure the child's right to rest, leisure and recreation, encourage the activities of individuals and organizations aimed at ensuring this right.

Article 23. The right of the child to be attached to cultural property

1. Each child has the right to familiarize himself with the history, national traditions, spiritual values of his people and world culture, the freedom of artistic, scientific and technical creativity, participate in the cultural life of society, engage in art, display his abilities and interests.

2. A child living in Turkmenistan, in accordance with his nationality, has the right to use his native language, observe cultural and national traditions and customs.

3. The State shall promote the right of the child to participate fully in cultural and creative life and promote the provision of equal opportunities for this.

4. The state provides each child with free access to national spiritual and historical values, the achievements of world culture by providing equal opportunities to use library collections, exhibition halls, museums and other cultural and educational institutions.

5. The state creates a network of special children's institutions of culture and art, institutions of extracurricular education, supports their activities aimed at promoting the development of individual and collective creativity of the child.

6. The state promotes the release of films, videos and cartoons, television and radio programs, print media, providing access to information resources of the World Wide Web, materials and works of literature and art, designed for children, youth and youth, as well as the dissemination of other knowledge useful for the cultural and aesthetic development of the child.

Article 24. The right of the child to work

1. Every child has the right to work, taking into account his age, health, education and training. This right arises when a child

reaches the age of sixteen.

2. Upon reaching the age of sixteen, a child has the right to begin labor activity on the basis of an employment contract concluded between him and the employer.
3. It is allowed to conclude an employment contract with a child who has reached the age of fifteen, only with the consent of the child and the consent of one of the parents.
4. It is allowed to conclude an employment contract with a child under the age of fifteen in cinematography organizations, theaters, theater and concert organizations, circuses with the consent of one of the parents and the permission of the guardianship authority to participate in the creation and (or) performance of works, if this does not contradict the best interests of the child.
5. Consent and permission to conclude an employment contract with the persons specified in parts three and four of this article are given in writing in the manner prescribed by the labor legislation of Turkmenistan.
6. A child under the age of eighteen years in labor relations is equal in rights to an adult, and in the field of labor protection, working hours, holidays and some other working conditions, enjoys the benefits established by the labor legislation of Turkmenistan.
7. The state encourages enterprises, organizations and institutions that allocate (create) jobs for persons under the age of eighteen years and having the right to work in accordance with this Law.

Article 25. The right of the child to inheritance

Every child has the right to receive an inheritance in cases and in the manner established by the legislation of Turkmenistan.

Section 26. Property Rights of the Child

1. A child has the right to receive maintenance from his parents (one of them) and other family members in the manner and amount established by the legislation of Turkmenistan.
2. The child has the right of ownership to the income received by him, to property received by him as a gift or by way of inheritance, as well as to any other property acquired at the expense of the child.

The child's right to dispose of property owned by him is determined by the civil law of Turkmenistan.

3. The child does not have the right of ownership of the property of the parents, the parents of the child do not have the right of ownership of the property of the child. Children and parents living together can own and use each other's property by mutual agreement.
4. In the event of the emergence of the right of joint ownership of parents and a child, their rights to own, use and dispose of this property shall be determined by the legislation of Turkmenistan.

Article 27. The right of the child to state benefits

child has the right to state benefits in the manner and on the conditions established by the legislation of Turkmenistan.

Article 28. The right of the child to free travel in public transport

A child under the age of seven is entitled to free travel in all types of urban passenger transport (except for taxi), and in the

countryside - on public transport (except taxi) and railway transport of suburban and intercity communication.

Article 29. The right of the child to unite in children's, youth and youth public associations and organizations

1. The child has the right to unite in children's, youth and youth public associations and organizations in the manner established by the legislation of Turkmenistan.
2. Children's, youth and youth public associations can create their own organizations, establish relations with children's, youth and youth public associations and organizations of other states, join international children's, youth and youth public associations and organizations in the manner established by the legislation of Turkmenistan.
3. The bodies of local executive power and local self-government shall provide assistance and assistance to children's, youth and youth public associations and organizations, and contribute to their work.

Article 30. The rights of a child who is not a citizen of Turkmenistan.

A child who is not a citizen of Turkmenistan, permanently residing in its territory, enjoys all the rights and bears responsibilities along with children - citizens of Turkmenistan, unless otherwise provided by law and international treaties of Turkmenistan.

Article 31. Rights of a refugee child

1. A child who has been granted refugee status in accordance with the legislation of Turkmenistan, enjoys the same rights and freedoms and bears the same duties as a child - a citizen of Turkmenistan, to the extent established by this Law and other regulatory legal acts of Turkmenistan.
2. A refugee child enjoys the rights to:
 - 1) choose a place of residence from the proposed list of settlements or with his relatives with their consent to live together;
 - 2) obtaining, with the assistance of the relevant authorities, information about relatives living in the country of former residence;
 - 3) voluntary return to the country of the previous place of residence or moving to any third country;
 - 4) the acquisition of citizenship of Turkmenistan in the manner prescribed by the legislation of Turkmenistan.
3. In order to protect the rights of a refugee child, the government and local government bodies:
 - 1) provide temporary residence for a refugee child who has arrived at the place of residence in the direction of the migration service body;
 - 2) render him assistance in finding a job;
 - 3) place, as a matter of priority, a refugee child with a disability who needs constant care in a social welfare institution;
 - 4) provide assistance in placing a refugee child in a pre-school or general educational institution;
 - 5) provide him with medical care and medicines in accordance with the legislation of Turkmenistan;
 - 6) render at his request assistance in returning to the country of his former permanent residence.

Article 32. Duties of the child

1. Each child must:

- 1) comply with the Constitution and laws of Turkmenistan;
- 2) know and respect the state symbols of Turkmenistan;
- 3) to love the motherland;
- 4) respect national traditions, cultural and historical values, protect the environment;
- 5) to be brought up in the spirit of fulfillment of duties and personal responsibility for their actions;
- 6) to receive general secondary education, which is compulsory in accordance with the Constitution and the Law of Turkmenistan "On Education";
- 7) master knowledge, prepare yourself for labor and other socially useful activities;
- 8) respect their parents and other family members, take care of them in old age, in cases of illness or other ailment, help their parents and other family members who need help;
- 9) respect the rights, freedoms and legitimate interests of others;
- 10) to respect and comply with the established norms and rules of conduct in the family and society;
- 11) take care of your health and take care of it;
- 12) to perform other duties stipulated by the legislation of Turkmenistan.

2. The child, when using his rights, must not violate the rights and legitimate interests of others.

3. In order to realize and fulfill their duties by children, parents, as well as representatives of relevant bodies and educational institutions conduct explanatory and educational work among children.

CHAPTER 3. STATE GUARANTEES FOR THE PROTECTION OF THE RIGHTS, FREEDOMS AND THE LAW INTERESTS OF

THE CHILD Article 33. State guarantees for the protection of the rights, freedoms and legitimate interests of the child

1. The state guarantees the protection of the rights, freedoms and legitimate interests of the child, as enshrined in the Constitution of Turkmenistan, this Law, and other regulatory legal acts of Turkmenistan, as well as relevant international law.

2. The protection of the rights, freedoms and legitimate interests of the child is carried out in the family by his parents, in an educational or specialized medical and educational institution - by his administration, as well as by government and local government bodies, relevant public associations and other organizations.

Article 34. The competence of bodies of state power and administration, local self-government in the field of protection of the rights, freedoms and legitimate interests of the child.

The bodies of state power and administration, local self-government in the field of protection of the rights, freedoms and legitimate interests of the child within their competence:

- 1) develop and implementation of a unified state policy in the interests of the child;
- 2) determine the priority areas for ensuring the rights, freedoms and legitimate interests of the child;
- 3) carry out the formation and implementation of state targeted programs to ensure the rights, freedoms and legitimate interests of the child, support for motherhood, fatherhood and childhood;
- 4) determine the circle of persons responsible for the implementation of such programs;
- 5) exercise supervision and control over the realization of the rights, freedoms and legitimate interests of the child;
- 6) interact with public associations and other organizations on the protection of the rights, freedoms and legitimate interests of the child;
- 7) participate in the implementation of Turkmenistan's international obligations regarding the protection of the rights, freedoms and legitimate interests of the child;
- 8) carry out international cooperation on the protection of the rights, freedoms and legitimate interests of the child;
- 9) solve other issues within their competence in accordance with this Law and other regulatory legal acts of Turkmenistan.

Article 35. Protection of the rights of the child to proper upbringing

1. The upbringing of the child in the family may be terminated only on the grounds provided for by the legislation of Turkmenistan.

2. Parents of a child, in order to ensure their comprehensive and harmonious development, are obligated to take care, patronize, create conditions for their growth and improvement, educate them in the spirit of patriotism, humanism, universal spiritual values, treat him as a person taking into account his personality, age and gender.

Parents of the child, taking into account his age and legal capacity, assist him in the implementation of independent actions aimed at the realization and protection of his rights, freedoms and legitimate interests.

3. The child's degradation, intimidation, corporal punishment, and other pain inflicting harm on his life, health, education and full development are unacceptable.

4. Both parents have the same responsibility for the life, health, and proper upbringing of the child.

5. The state provides an orphaned child, a child left without parental care, a family form of education - adoption.

6. The state ensures the protection of the child from any form of obscenity, the unworthy treatment of him by parents and other persons who are responsible for the upbringing and care of him, and exercises appropriate supervision over the observance of the appropriate conditions of guardianship (guardianship).

Article 36. Protection of the child's rights to education

1. The state shall create the necessary conditions and guarantees for the child to receive education in accordance with the

Constitution of Turkmenistan and the Law of Turkmenistan “On Education”.

2. The child's education should contribute to the disclosure of his intellectual and physical inclinations, the development of personality, creative abilities and talents, aesthetic education and cultural development. To this end, the state encourages the publication of educational and methodological literature, children's books, magazines and newspapers, the release of films, videos and cartoons, television and radio broadcasts, provides access to materials related to spiritual and cultural development, information resources of the worldwide network.

The child should be prepared for independent life, brought up in a spirit of respect for parents, compatriots, other people, the state language, national culture and customs, languages and culture of other nations, respect for the natural environment, learn to observe the rules of behavior in the family and society .

3. Educational institutions carry out activities to ensure vocational guidance and training of the child.

4. The state provides the child with the right to education by creating an education system and appropriate socio-economic conditions for receiving education.

5. In order to realize the right to education of a child in need of social support, the state shall bear the costs of its maintenance during the period of education.

6. The state creates conditions and access for children with disabilities to receive education in educational institutions of a general type (inclusive education).

7. The state provides assistance in obtaining education for a child who has shown outstanding abilities, including through the provision of a special state scholarship, including a scholarship to study abroad.

8. The state creates the conditions necessary for the development of the child's creative abilities, ensuring his aesthetic education, encourages the production and distribution of children's literature, the dissemination of information and materials from various cultural, national and international sources that are socially and culturally useful for the child, and encourages the development of principles protect the child from information and materials that harm his life, health, proper education and full development.

Article 37. Protection of the rights of the child to health and a healthy environment

1. The state guarantees the child free use of the network of state healthcare institutions, receiving free qualified medical care in the amount stipulated by the legislation of Turkmenistan. The state contributes to the creation of safe conditions for the life and healthy development of the child, to obtain good nutrition, clean drinking water, and the formation of healthy lifestyle skills.

2. In order to ensure the rights of the child to health protection in state healthcare institutions, measures are being taken to provide the child with free medical care, including disease prevention, medical diagnostics, medical and health work, including dispensary observation, habilitation and rehabilitation of a child with a disability and a child, suffering from a chronic disease, as well as spa treatment in the manner prescribed by the legislation of Turkmenistan.

3. The state guarantees the compliance of the conditions for the upbringing, education and maintenance of the child with the requirements of the state sanitary and epidemiological rules and standards.

4. The state encourages and financially supports the creation of a wide network of out-of-school institutions, sports facilities, clubs and other facilities that carry out activities aimed at improving the health of the child and organizing his leisure.

Article 38. Protection of the child from exploitation at work

1. The state protects the child from all forms of exploitation at work by means of a legal, economic, social, medical and educational nature.
2. It is forbidden to use the labor of a child under the age of eighteen years to work with special working conditions, as well as to work, the performance of which may harm his health and moral development (gambling, production, transportation and trade in alcoholic beverages, tobacco products, drugs, toxic and other means). It is also forbidden to carry and move, manually lift and move by a child heavy loads that exceed the limit norms established by the legislation of Turkmenistan.
3. It is forbidden to involve a child under the age of eighteen to work at night, work overtime, work on weekends, non-working holidays and memorial days, and also send him on business trips.
4. It is not allowed to involve a child during the school year in agricultural and other work related to weaning him from school.

Article 39. Protection of a child from illegal use of narcotic drugs and psychotropic substances, consumption of tobacco products

1. The state shall take the necessary measures to promote a healthy lifestyle and protect the child from illegal use of narcotic drugs and psychotropic substances, consumption of tobacco products, and counteracts their illegal trafficking.
2. The involvement of the child in the production, trafficking, distribution and use of narcotic drugs and psychotropic substances, the consumption of tobacco products entails liability established by the legislation of Turkmenistan.
3. The state shall prevent diseases associated with the use of narcotic drugs and psychotropic substances, the consumption of alcohol, tobacco products and exposure to tobacco smoke, ensure that medical institutions provide medical assistance to a child who needs treatment for tobacco dependence and the consequences of the consumption of tobacco products, alcohol, and guarantees a child suffering from drug addiction and substance abuse, the provision of narcological assistance.
4. Advertising and demonstration of narcotic drugs and psychotropic substances, tobacco products and their consumption in newly created audiovisual works, including television, video and cartoons, in theatrical and entertainment performances, in television, video and film programs, as well as public execution, communication, in which the demonstration of narcotic drugs and psychotropic substances, tobacco products and their consumption.

Article 40. Protection of a child from obscenity

1. In Turkmenistan, the manufacture, distribution and advertising of pornographic print media, films, videos and cartoons or other objects and means of a pornographic nature, as well as involving the child in the manufacture, distribution and advertising of such products, is prohibited.
2. The state shall protect children from any assault and sexual violence.

Article 41. Protection of the child from information and materials harmful to his life, health, education and full development

1. The state shall facilitate the receipt by the child of information and materials from various sources that do not harm his life, health, education and full development.
2. It is forbidden for children to display, rent, sell, donate and duplicate toys and computer games, television, film, video and cartoons, sound and video recordings, books, newspapers, magazines and other print media that directly promote or

promote war, cruel treatment, violence, racial, religious discrimination, discrimination based on gender and age differences or otherwise harmful to the spiritual and moral development of the child.

3. In order to protect the present and future generations of Turkmenistan, to develop a responsible attitude to health, to prevent the use of narcotic drugs and psychotropic substances, to consume tobacco products, to prevent diseases associated with their consumption, information is disseminated and knowledge on the harmful effects of the use of narcotic drugs is disseminated. means and psychotropic substances, the consumption of tobacco products and the harmful effects of tobacco smoke on the human body.

4. General education programs and professional educational programs should contain sections on the study of the harmful effects on the human body of the use of narcotic drugs, psychotropic substances, the consumption of tobacco products and tobacco smoke.

5. Education of the child about the dangers of using narcotic drugs and psychotropic substances, the consumption of tobacco products and the harmful effects of tobacco smoke is carried out in the family, in the process of education and training in educational institutions, medical institutions, as well as employers in the workplace.

6. In order to ensure the safety of life, protect the health, morality of the child, protect him from the negative effects of games, tools and objects that could have harmful consequences for his life, health, proper education and full development in the manner determined by the Cabinet of Ministers of Turkmenistan, they are carried out expertise.

Section 42. Protection of the rights of a child with a disability

1. A child with a disability in Turkmenistan has the full range of socio-economic, personal rights and freedoms enshrined in the Constitution and laws of Turkmenistan.

A child with a disability has the right to a worthy and full participation in the life of society and the state.

2. Discrimination of a child with a disability is prohibited. A child with a disability has the right to respect for his physical and mental integrity on an equal basis with other children.

Persons admitting discrimination are liable in accordance with the legislation of Turkmenistan.

3. The state shall take all necessary measures to ensure the full enjoyment by a child with a disability, taking into account his individual abilities and interests of all human rights and fundamental freedoms on an equal basis with other children, respect for the developing abilities of a child with disabilities and his right to preserve his personality.

4. In all activities regarding a child with a disability, priority is given to the best interests of the child.

5. The state shall ensure the right of a child with a disability to freely express his own views on all matters relating to him, relevant to his age and degree of maturity, on an equal basis with other children, to receive assistance in accordance with his disability and age to exercise this right.

6. In order to socially support and adapt a child with a disability, the state creates an enabling environment that provides him with access to educational, medical and cultural institutions, public transport, etc., promotes his full and effective participation in society on an equal basis with other children.

7. The state guarantees a child with a disability social protection in the form of material support and social services through the payment of state benefits and social benefits in the manner prescribed by the legislation of Turkmenistan.

8. Parents raising a child with a disability are provided with benefits provided for by the legislation of Turkmenistan.

Article 43. Maintenance and upbringing of orphans and children left without parental care

1. The state shall ensure the maintenance and upbringing of orphans and children left without parental care, keeping a centralized record of such children in the manner established by the legislation of Turkmenistan.
2. An orphaned child or a child left without parental care, in his best interests, shall be transferred to close relatives in the family for adoption.
3. In case the child cannot be provided with a family form of education, he is transferred under guardianship (trusteeship), guardian (curator) or sent to the appropriate child care institution, social service institution for full state support. Pupils of such institutions are provided with the necessary conditions for comprehensive and harmonious development, preparation for independent life and work.
4. An orphaned child and a child left without parental care shall have the rights provided for by this Law and other regulatory legal acts of Turkmenistan.
5. The procedure for transferring such children for adoption, under guardianship (guardianship), monitoring the conditions of their residence and education in the families of adoptive parents, as well as those under guardianship (guardianship), is determined by the legislation of Turkmenistan.
6. Intermediary, commercial activities on the adoption of children, their transfer under guardianship (trusteeship) or on raising families of citizens of Turkmenistan, foreign citizens or stateless persons are prohibited.
7. It is not allowed to receive unjustified financial benefits as a result of adoption or guardianship of a orphan or child left without parental care.

Article 44. Protection of the rights of the child in case of bringing him to justice

1. Detention, arrest, other restriction or imprisonment of a child is allowed only in cases and in the manner prescribed by the legislation of Turkmenistan, with immediate notification of this to his parents.
2. The procedure and conditions for children to serve sentences of imprisonment are established by the legislation of Turkmenistan.

Article 45. Protection of the child from abduction and trafficking. The

state shall take all necessary measures to prevent the abduction and sale of the child for any purpose and in any form.

Article 46. Rights, duties and responsibilities of parents for the upbringing and development of the child

1. Parenting in the family is the basis for the harmonious development of the personality of the child.
2. Each parent has the same responsibility for the upbringing, education and development of the child, and the state provides them with support in this.
3. Parents of the child have the right and obligation to raise the child, take care of his health, physical, spiritual and moral development, education, create the right conditions for the disclosure of his natural abilities, respect the dignity of the child, prepare him for independent life and work, and the state provides appropriate help parents in raising a child.
4. The state provides parents with assistance in fulfilling their responsibilities for raising a child, protects the rights of the

family, and promotes the development of a network of children's institutions.

5. Parents, taking into account the legal capacity and age of the child, provide him with assistance in the implementation of independent actions aimed at the realization and protection of his rights and legitimate interests.

6. Parents of the child in accordance with the legislation of Turkmenistan are responsible for violation and (or) restriction of the rights, freedoms and legitimate interests of the child related to the protection of health, physical and spiritual development, education, as well as for non-fulfillment or evasion of parental duties.

7. In case of refusal to provide the child with the necessary medical care, if this threatens his health, the parents of the child, as well as medical workers, are liable under the laws of Turkmenistan.

8. In the event of a critical state of health of a child in need of emergency medical care, medical personnel are obliged to warn parents of responsibility for leaving the child in danger.

CHAPTER 4. FINAL PROVISIONS

Article 47. Responsibility for violation of this Law

Persons guilty of violation of this Law are liable under the legislation of Turkmenistan.

Article 48. Settlement of disputes

Disputes arising in the field of protection of the rights, freedoms and legitimate interests of the child are resolved in the manner established by the legislation of Turkmenistan.

Article 49. The entry into force of this Law

1. This Law shall enter into force on the day of its official publication.

2. To recognize the Law of Turkmenistan of July 5, 2002 "On Guarantees of the Rights of the Child" as invalid (Vedomosti of the Mejlis of Turkmenistan, 2002, No. 2, Article 18).

3. The regulatory legal acts of Turkmenistan shall be brought into compliance with this Law within three months from the date of its entry into force.

President of Turkmenistan
Gurbanguly BERDYMUKHAMEDOV.

Ashgabat, May 3, 2014.

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March 2020

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9 (data=2020-3-9)	10 (data=2020-3-10)	eleven (data=2020-3-11)	12	thirteen	14
16	17	18	19	20	21
23	24	25	26	27	28
thirty	31				

2019 (date=2019-3-11) February (date=2020-2-11) " April (date=2020-4-11)
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